

## Rajendra Kumar v. State of U.P. (recovery citation relegated to para 6.8 objection)

High Court of Judicature at Allahabad · Division Bench · 18 August 2022 · Writ-C No. 23538 of 2022 · **Writ disposed; liberty to object under para 6.8 with stay of coercive recovery.**

### HEADNOTE

Without expressing any opinion on merits, the Allahabad High Court disposed of a writ seeking to quash a recovery citation of Rs. 42,310 by granting liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks, to be decided in accordance with law within the next four weeks after hearing, and stayed coercive action for eight weeks or until disposal of the objection, whichever is earlier.

### FACTUAL SUMMARY

The petitioner, Rajendra Kumar, filed a writ petition in the Allahabad High Court seeking certiorari to quash a recovery citation dated 11 July 2022 issued by respondent no. 3 for Rs. 42,310, and a mandamus restraining recovery of that amount. Counsel for the Power Distribution Corporation (respondent no. 4) stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.8

objection to recovery citation under para 6.8

#### HOLDING

A writ challenging a recovery citation is disposed of, without opinion on merits, by liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks; if so submitted, the licensee shall decide it in accordance with law within the next four weeks after reasonable opportunity of hearing, and no coercive action shall be taken on the demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

### PRINCIPLE TAGS

**para-6.8-objection-alternate-remedy** The Court treated Para 6.8 as the statutory forum for objecting to the recovery citation and disposed of the writ by relegating the consumer to that objection rather than examining the demand on merits. ¶ 1

**pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay** If a Para 6.8 objection is filed within four weeks, the licensee must decide it in accordance with law within the next four weeks after hearing, and coercive recovery is stayed for eight weeks or until that disposal, whichever is earlier. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

**NOT DECIDED — MERITS OF THE RECOVERY CITATION DATED 11.07.2022 AND THE DEMAND OF RS. 42,310**  
Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1

